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Our Democracy CANNOT Be For Sale

California Legislators Must Step Up to Pass Meaningful AI Data Privacy Reforms

By Marco Schurer Drews, Jessica Olney, Rachmat Septiadi Malik & Tara Sreekrishnan

We live in an era when artificial intelligence is growing faster than regulations can catch up. Many people are blind to the fact that, even here in the United States, government agencies can buy up our personal data from private brokers — everything from your location history to your browsing behavior. They don’t need a warrant. They don’t need a subpoena. They just need money.

In the age of AI, and with so much of our digital lives being constantly tracked, it’s easier than ever for our personal information to be used in ways that target, silence, or even manipulate people. It’s a silent threat to our democracy that’s growing exponentially each day.

California already leads the way when it comes to consumer privacy laws. We’ve passed landmark legislation like the California Consumer Privacy Act (2018) and the Delete Act (2023). But these regulations fall short when it comes to protecting us from our own government in the age of AI.

We need to extend opt-out rights to cover government data purchases, rein in AI profiling used by public agencies, and set clear rules around how personal data can and can’t be used.

Even the U.S. House Bipartisan AI Task Force has acknowledged that AI use by federal agencies is outpacing safeguards. Their 2024 report urges government transparency and calls

for clear rules on how AI systems interact with public data and citizens — exactly the kind of protections California can lead on.

There are three bills moving through the California legislature this year that can provide us a realistic path forward.

AB 1355 (Ward) takes aim at the unauthorized tracking and sale of our physical whereabouts. It would put much-needed limits on how one's location data can be collected and used. Unless someone explicitly asks or proactively opt-ins, their whereabouts cannot be tracked. This bill also bans state and local agencies from monetizing that data or handing it over to federal agencies.

AB 1337 (Ward) updates the decades-old Information Practices Act so its protections actually apply to local agencies and not just state agencies — like school districts, city governments, and law enforcement. This bill closes major loopholes to ensure personal information can't be repurposed without cause, and that people are notified when their data has been breached.

SB 468 (Becker) would require any business deploying AI that uses personal information to put significant safeguards in place — like encryption, employee training, and internal audits. Many AI systems, right now, are built without any meaningful protections at all, and this bill holds companies accountable under California's Unfair Competition Law if they fail to protect users' sensitive information.

Policies like this won't stifle AI innovation; they simply ask for transparency, consent, and common sense. When technology is evolving at the speed it is today, the public should not be left in the dark about how our data is being used.

This isn't just a California problem or even a U.S. one. The World Economic Forum has highlighted the global risk of AI-enabled manipulation and surveillance. Democracies everywhere are scrambling to enact baseline protections — and California can lead the way.

California must send a clear message to the state and the nation that in a democracy, no one — not even the government — should be able to buy their way around our personal privacy.

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